DO THE DRUGS, DO THE TIME?

The Effect of Drug Abuse on Sentences Imposed on Drug Offenders in Three U.S. District Courts

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The purpose of this study is to determine whether offenders' history of hard drug use and hard drug use at the time of the crime affect case outcomes for offenders in three federal district courts. We focus on three outcomes—whether the offender was in pretrial detention prior to adjudication, whether the offender received a downward departure for providing substantial assistance, and the length of the sentence imposed on offenders who were sentenced to prison—and we hypothesize that the offender's history of drug use and drug use at the time of the crime will have varying effects on the three outcomes. Our results reveal that use of illegal drugs had multifaceted, but not illogical, effects.

Keywords: sentencing; drug abuse; federal sentencing guidelines; substantial assistance departures; pretrial release

Several decades of research demonstrate that the sentencing decision results from a process of gathering and interpreting information about both the offense and the offender. Judges use this information to evaluate the harm done by the crime, the blameworthiness of the offender, and the offender's potential for reform. As John Hogarth (1971) wrote 40 years ago, sentencing "is a cognitive process in which information concerning the offender, the offense, and the surrounding circumstances is read, organized in relation to other information and integrated into an overall assessment of the case" (p. 279).

This suggests that judges attempt to fashion sentences that fit offenders as well as their crimes. Consistent with the focal-concerns perspective (Steffensmeier, Kramer, & Streifel, 1993; Steffensmeier, Ulmer, & Kramer, 1998), judges are concerned with imposing sentences that not only are proportionate to the seriousness of the crime but also reflect their assessments of offenders' blameworthiness and future dangerousness. To make these assessments, judges examine the past criminal behavior of offenders as well as their life histories and current circumstances. They may take into consideration such factors as offenders' educational histories, physical and mental health, history of substance abuse, family and work situations, community ties, and conduct since the arrest as well as the role

AUTHORS' NOTE: *This article is based on work supported by the National Science Foundation under Grant SES0136236. Points of view are those of the authors and do not necessarily reflect the position of the National Science Foundation. Correspondence concerning this article should be addressed to Cassia Spohn, School of Criminology and Criminal Justice, Arizona State University, 411 N. Central Avenue, Phoenix, AZ 85004; e-mail: cassia.spohn@asu.edu.*

CRIMINAL JUSTICE AND BEHAVIOR, Vol. 40, No. 6, June 2013, 646-670.
DOI: 10.1177/0093854812468433
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they played in the offense, their motivation for the crime, and the extent to which they feel remorse for their behavior. Assessing offenders in this way "allows judges to make substantial and refined distinctions between offenders who might appear quite similar if one looked only at the legal wrong committed and the harm it caused" (Wheeler, Mann, & Sarat, 1988, p. 120).

The problem with this somewhat idealized view of the sentencing process is that it assumes that judges have discretion to consider offenders' life histories and current circumstances. However, a series of sentencing reforms implemented during the past four decades—presumptive sentencing guidelines, mandatory minimum sentences, truth-in-sentencing laws, and "three-strikes-and-you're-out" habitual offender laws—has curtailed the discretion of judges to take these factors into consideration. For example, the federal sentencing guidelines require the judge to impose a sentence within a range that is determined by the offender's criminal history and offense seriousness scores.[1] Although the guidelines allow judges to depart either upward or downward from the sentence range if the case involves unusual circumstances, there are very limited grounds for these departures. The *Federal Sentencing Guidelines Manual* (U.S. Sentencing Commission, 2008) also spells out the factors that judges are *not* to take into account in determining the sentence. In accordance with congressional directive, the guidelines state that the offender's race, gender, national origin, creed, religion, and socioeconomic status are never relevant to the determination of the sentence. Moreover, certain offender characteristics, including the offender's age, education and vocational skills, employment record, family ties and responsibilities, drug or alcohol abuse, and community ties "are not ordinarily relevant" in determining whether a departure is warranted (U.S. Sentencing Commission, 2008, § 5H1.10). These provisions preclude federal judges—at least in theory—from considering what many regard as the "commonsense bases for distinguishing among offenders" (Tonry, 1996, p. 77).

In the current study, the first to address this issue in the context of the federal sentencing process, we focus on the direct and indirect effects of an offender's substance abuse history on the length of the prison sentence. Using data on drug trafficking offenders adjudicated in three U.S. district courts, we ask whether the offender's history of nonmarijuana (i.e., "hard") drug use and use of such drugs at the time of the crime affect the severity of the sentence imposed. We focus on offender substance abuse as a key extralegal factor in sentencing decisions for several reasons. First, substance abuse is a common factor in both drug and nondrug crime, with large majorities of federal offenders charged with drug-related crime or regular users of hard drugs (Belenko & Peugh, 1998; Mumola & Karberg, 2006). Second, much of the impetus for mandatory minimum sentences and other limits to judicial sentencing discretion arose, beginning in the mid-1980s, from concerns about the spread of crack cocaine use, other drug use, and the relationship between hard drug use and other crime (Belenko, 1993; Blumstein & Beck, 1999; Travis, Solomon, & Waul, 2001). Third, despite the media and political portrayal of convicted federal drug traffickers as high-level drug "kingpins," a majority of convicted traffickers in the federal court system actually play nonmanagerial, relatively minor roles in drug distribution, such as street dealer, courier, bodyguard, lookout, or driver (U.S. Sentencing Commission, 2007). Finally, more recent trends in sentencing laws, coupled with the spread of drug treatment alternatives to prison, point to a growing recognition at all levels of the sentencing process that drug abuse and dependence may represent mitigating factors to consider in sentencing decisions, even for drug traffickers (Hora, Schma, & Rosenthal, 1999; Marlowe, 2003; Taxman, Henderson, & Belenko, 2009).

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We also examine whether these substance abuse variables affect sentence severity indirectly through their effects on the likelihood of pretrial detention and the likelihood of a substantial assistance departure. We focus on pretrial detention because judges are *required* to take the offender's substance abuse history into account in deciding between detention and release, and we focus on substantial assistance departures, given the discretionary nature of these decisions, which involve both prosecutors and judges, and the potential for offender characteristics, such as substance abuse history, to come into play. Moreover, prior research has shown that both pretrial detention (Johnson & Betsinger, 2009; Spohn, 2009; Ulmer, Eisenstein, & Johnson, 2010) and receipt of a substantial assistance departure (Albonetti, 1997; 2002; Everett & Wojtkiewicz, 2002; Hartley, Maddan, & Spohn, 2007; Johnson, Ulmer, & Kramer, 2008; Kempf-Leonard & Sample, 2001; LaFrenz & Spohn, 2006; Maxfield & Kramer, 1998; Mustard, 2001; Spohn & Fornango, 2009; Steffensmeier & Demuth, 2000; Stacey & Spohn, 2006) are powerful predictors of sentence severity.

DRUG USE AND THE FEDERAL SENTENCING PROCESS

As noted above, the *Federal Sentencing Guidelines Manual* states that "*drug or alcohol dependence or abuse is not a reason* for imposing a sentence below the guidelines" (U.S. Sentencing Commission, 2008, § 5H1.4; emphasis added). In determining the appropriate sentence, in other words, judges are precluded from considering whether the offender has a history of drug abuse or was using drugs at the time of the crime. Although this would seem to rule out mitigated (or aggravated) sentences for drug-addicted offenders, the situation is complicated by the existence of the substantial assistance departure (U.S. Sentencing Commission, 2008, § 5K.1.1), which involves discretionary decisions by both prosecutors and judges. Defendants who provide "substantial assistance"—that is, information that leads to the prosecution and conviction of another offender—are eligible for this type of prosecutor-initiated downward departure. Because the meaning of *substantial assistance* is not defined, and because there are few, if any, guidelines regarding the factors that assistant U.S. attorneys (AUSAs) are to take into account in deciding whether to file a motion for a substantial assistance departure, the decision is highly discretionary.

The discretionary nature of the substantial assistance departure is further illustrated by the fact that if the court grants the motion, the sentencing judge has discretion to determine the amount of the sentence reduction. Section 5K1.1 states that the judge's decision regarding the appropriate reduction may rest on the significance and usefulness of the defendant's assistance; the truthfulness, completeness, and reliability of the information provided; the nature, extent, and timeliness of the defendant's assistance; and any danger or risk that resulted from the defendant's assistance. Consideration of these factors may result in a sentence that is substantially shorter than the presumptive sentence indicated in the sentencing guidelines; it may even result in a sentence that is shorter than the mandatory minimum sentence that would be applicable absent the downward departure for providing substantial assistance (see 18 U.S.C. § 3553 (e)).

The discretion inherent in the substantial assistance departure opens the door for consideration of offender characteristics, including history of substance abuse, that federal judges are precluded from considering at sentencing. In fact, sentencing scholars contend that substantial assistance departure decisions are a "wellspring of sentencing disparity" (Stith

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& Cabranes, 1998, p. 140) and have the potential to produce the type of unwarranted disparity that the guidelines were intended to eliminate (Kramer & Ulmer, 1996; Mustard, 2001; Nagel & Schulhofer, 1992).

The situation is further complicated in that offender characteristics, including the history of substance abuse, are explicitly relevant to bail and pretrial detention decisions. Pretrial detention decisions in federal courts are structured by the Bail Reform Act of 1984 (2006), which permits judges to detain a defendant as a means of ensuring the safety of the community and the appearance of the defendant in court. Section 3142(b) of the act states that the defendant must be released on personal recognizance or unsecured personal bond unless the judicial officer determines "that such release will not reasonably assure the appearance of the person as required or will endanger the safety of any other person or the community."

Section 3142(g) specifies the factors that judges must take into consideration in making decisions regarding pretrial release or detention: (a) the nature and circumstances of the offense charged, including whether the offense is a crime of violence or involves a narcotic drug; (b) the weight of the evidence against the defendant; (c) the history and characteristics of the defendant; and (d) the nature and seriousness of the danger to any person or the community that would be posed by the defendant's release. Included in "the history and characteristics" of the defendant are the defendant's "character, physical and mental condition, family ties, employment, financial resources, length of residence in the community, community ties, past conduct, *history relating to drug or alcohol abuse*, criminal history, and record concerning appearance at court proceedings " (Bail Reform Act of 1984, 2006, § 3142[a][3][A]; emphasis added).

Depending on the decision point, then, an offender's history of drug use or drug use at the time of the crime may or may not be legally relevant. Judges are instructed to take the defendant's drug abuse history into account in deciding whether the defendant should be detained pending trial but are precluded from considering this factor in deciding whether the sentence should be outside the applicable guideline range. The offender's history of drug abuse is not specifically mentioned in the section of the guidelines manual that addresses substantial assistance departures. However, the fact that the guidelines do not define *substantial assistance* or spell out when a substantial assistance departure is warranted means that the defendant's substance abuse might come into play in this highly discretionary decision. Coupled with the fact that the sentencing process—even in jurisdictions with presumptive guidelines—is inherently discretionary, the ambivalence and ambiguity surrounding the potential influence of an offender's drug use history suggest that this factor may come into play as judges attempt to tailor sentences to fit offenders as well as their crimes.

In the sections that follow, we provide a brief review of the literature on four topics: the relationship between drug use or abuse and crime, pretrial detention decisions, substantial assistance departures, and sentencing decisions indicated in the guidelines.

DRUG USE OR ABUSE AND CRIME

Use and abuse of illegal drugs are extremely common among inmates in U.S. federal prisons. More than three fourths (78.7%) have ever used an illegal drug, 64.3% have used drugs regularly, and nearly half (45.5%) meet diagnostic criteria for drug abuse or dependence (Belenko & Peugh, 2005; Mumola & Karberg, 2006). Aside from marijuana, the most common drugs ever used by federal inmates are cocaine or crack (43.3%), hallucinogens

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(25.9%), methamphetamines (17.9%), or heroin or other opiates (17.9%) (Mumola & Karberg, 2006). Among federal inmates convicted of drug offenses (mainly trafficking), nearly two thirds (62.2%) meet diagnostic criteria for drug abuse or dependence (Mumola & Karberg, 2006).

These statistics reflect both the strong connections between illegal drug use and criminal behavior and the changes in law enforcement practices and sentencing laws that began in the 1980s. The promulgation of the "War on Drugs" in both federal and state criminal justice systems accelerated in the mid-1980s with the emergence of crack cocaine and concerns about violence related to street-level drug markets (Belenko, 1993; Mauer & King, 2007; Tonry, 1995). With passage of the federal Anti-Drug Abuse Acts of 1986 and 1988, mandatory and lengthier sentences for both drug possession and drug trafficking were implemented in the federal courts. In addition, these laws affected federal sentencing policies for drug cases by providing for lengthier sentences for those convicted of offenses related to crack compared with powder cocaine. Although this sentencing disparity was recently reduced by the U.S. Congress from 100:1 to 18:1 (Fair Sentencing Act of 2010), there remains a highly punitive legacy against crack-related offenses in the federal courts relative to offenses involving other drugs (U.S. Sentencing Commission, 2007).

Although the punitive drug sentencing laws and policies that structure sentencing decisions for drug sellers and users prosecuted in the federal system would seem to preclude consideration of offenders' drug use history, the recent emergence of a more rehabilitative model of punishment for drug offenders (Belenko, 2002; Belenko, Houser, & Welsh, 2011; Belenko, Sung, Swern, & Donhauser, 2008; Chandler, Fletcher, & Volkow, 2009; Hora et al., 1999; Inciardi, Martin, & Butzin, 2004; Marlowe, 2003; Pelissier et al., 2001) suggests that this factor may come into play. As indicated earlier, most drug traffickers in federal prisons are also drug users (although not necessarily hard drug users), and nearly two thirds meet diagnostic criteria for drug abuse or dependence. Accordingly, discretionary prosecutorial and judicial decisions about pretrial detention, and to some extent, substantial assistance departures, are likely to be affected by information about the offender's drug use. Sentencing theories (especially focal-concerns theory) suggest that information about an offender, and his or her potential for reform and rehabilitation, is likely to be an important factor in case processing and sentencing decisions. In the case of drug abuse in particular, decision makers' views about the nature and causes of drug abuse and addiction, the effectiveness of drug treatment, and the causal role of drug use in criminal behavior are likely to affect sentencing and related decisions. These beliefs, and the types of information about the offender's drug abuse history contained in court records, may affect perceptions of culpability, perceived danger, and rehabilitative potential.

For example, internalized perceptions of theories of drug abuse may affect the level of punitive responses by judges and prosecutors. Theories of addiction as a behavioral or moral issue suggest that (a) personal choice plays an important role in initiating and sustaining drug use, (b) drug abusers can stop or control their use but choose not to, (c) recidivism is highly likely among drug users, and (d) drug abuse is just another indicator of general deviance (Satel, 2007; Sullum, 2003). Thus, those who view addiction as a moral or behavioral issue, with drug use in the person's control, may be more likely to view such offenders as being culpable for their crimes, more dangerous to society, unlikely to be helped by drug treatment, and needing to be incapacitated to protect society.

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In contrast, the medical or disease model (now widely accepted in the scientific community) posits that drugs (especially opiates and cocaine) directly alter the brain chemistry through their effects on the dopamine reward system. These neurochemical effects—which can last for many months following cessation of drug use—are what cause tolerance and withdrawal symptoms and produce cravings for the drug and make relapse likely (Kosten, 1998; Volkow, Fowler, Wang, Swanson, & Telang, 2007; Volkow & Li, 2005). There is also evidence of a genetic component to drug abuse, with some individuals having a genetic predisposition to the brain effects of drugs (Uhl, 2004; Uhl & Grow, 2004). Judges and prosecutors accepting the disease model of addiction may be more likely to support pretrial release, use of substantial assistance departures, less punitive sentences, or placement into drug treatment programs. In this model, drug trafficking may be viewed as related to the offender's drug abuse or dependence, thus reducing culpability and increasing the perceived potential for rehabilitation.

Psychodynamic or personality theories of drug abuse suggest that certain personality traits or conditions make people more susceptible to drug abuse (Ball, 2005; Deas, St. Germaine, & Upadhyaya, 2006; Elkins, King, McGue, & Iacono, 2006; Hopwood et al., 2011; Ruiz, Pincus, & Schinka, 2008). These include such traits as risk taking, impulsivity, low self-esteem, or sensitivity to stress. In addition, these theories posit that drug use may be more common among individuals with certain mental health conditions, such as anxiety or depression. Thus, drugs may be used for self-medication to alleviate psychological symptoms and distress, and drug use is more likely to continue if it relieves these symptoms and produces a feeling of well-being (De Bellis, 2002; Sinha, 2001). Acceptance of psychological distress or mental health problems as a causal factor for drug use may make the offender more sympathetic to a judge or prosecutor and may increase the perception that such an individual can be helped with treatment and does not need lengthy incarceration.

Given the violence associated with some drug markets, criminal justice officials' assessments of defendants who use or sell drugs may also be affected by their perceptions of the relationship between drug use and violent crime. The tripartite conceptual framework proposed by Goldstein (1985) to explain drug-related violence posits three causal explanations: psychopharmacological, economic-compulsive, and systemic. The *psychopharmacological* model suggests that drugs and violence are strongly and directly connected. According to this model, drugs—especially stimulants, such as cocaine—increase excitability, aggression, hostility, and irrationality, which then increase the likelihood of aggressive or violent behavior (Fagan, 1990; Parker & Auerhahn, 1998). Thus, the psychological and physical effects of psychoactive substances cause users to become violent; absent drug use, the individual would not engage in violent behavior. A variant on this model, disinhibition theory, has been proposed to explain the connections between alcohol use and violence (Fagan, 1990; Parker & Auerhahn, 1998). In the *economic-compulsive* model, drug users need money to maintain their drug dependence. In the course of committing acquisitive crimes, users engage in behavior (such as robbery and burglary) that can turn violent. Finally, the *systemic* model posits that drug dealing is inherently confrontational and exploitative and that the social and economic contexts of drug distribution foster aggression and violence (Goldstein, 1985). These can involve "turf wars" among drug dealers or fights with buyers concerning money and reflect the absence of formal structures or mechanisms to resolve disputes among dealers or between dealers and their customers. Generally, data on street drug markets, especially those related to crack and powdered cocaine, support the dominance of the systemic model (Goldstein, 1985).

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To summarize, whether judges and prosecutors view the defendant's history of drug use or abuse as a mitigating or an aggravating factor may depend on their perceptions of the relationship between drug use or abuse and crime as well as their beliefs about the causal mechanisms that lead individuals to use illegal drugs. Those who see a direct connection between drug use and violent crime and those who believe that drug addiction is a behavioral or moral issue may believe that drug users deserve more punitive treatment. In contrast, those who adopt the medical or disease model or who believe that drug addiction results from personality disorders or mental health issues may be more inclined to mitigate punishment on the basis of the defendant's history of substance abuse.

PRETRIAL DETENTION DECISIONS IN FEDERAL COURTS

There is very limited research examining bail and pretrial release and detention decisions in the post–federal guidelines era. This largely reflects that until recently, the publicly available data files from the U.S. Sentencing Commission did not include the offender's pretrial status. An exception is Spohn's (2009) analysis of the likelihood of pretrial detention in three federal district courts, which revealed that the offender's pretrial status was predicted by a mix of offender and case characteristics. The odds of pretrial detention were higher for offenders whose crimes and criminal histories were more serious and for offenders who were under some form of criminal justice control at the time of the offense. Pretrial status also was affected by offenders' stakes in conformity and community ties: Pretrial detention was less likely for offenders who were more educated, were employed, and/or were married. In addition, Spohn's study revealed that Black offenders were more likely than White offenders, and male offenders were more likely than female offenders, to be held in custody prior to the sentencing hearing. Research using state-level data (see, e.g., Albonetti, 1991; Albonetti, Hauser, Hagan, & Nagel, 1989; Chiricos & Bales, 1991; Demuth, 2003; Demuth & Steffensmeier, 2004; Katz & Spohn, 1995; Schlesinger, 2005) similarly shows that bail and pretrial release decisions are based primarily on the seriousness of the offense and the defendant's prior criminal record and ties to the community.

There also is convincing evidence that federal sentence outcomes are affected by pretrial status: Offenders who are detained prior to trial are sentenced more harshly than those who are released (Johnson & Betsinger, 2009; LaFrentz & Spohn, 2006; Spohn, 2009; Ulmer et al., 2010) and are less likely to receive downward or substantial assistance departures (Johnson & Betsinger, 2009; Spohn & Fornango, 2009; Ulmer et al., 2010). This research demonstrates that judges' pretrial detention decisions in federal courts are based on offender and case characteristics that are generally consistent with the provisions of the Bail Reform Act of 1984. The research also highlights the importance of controlling for pretrial detention in models predicting the likelihood of a substantial assistance departure, the likelihood of incarceration, and the length of the sentence, since being in custody prior to the sentencing hearing has a strong negative effect on the likelihood of departure and a strong positive effect on sentence severity.

SUBSTANTIAL ASSISTANCE DEPARTURES

There is a growing body of research on the factors that influence the likelihood of a substantial assistance departure and the magnitude of the sentence discount provided to

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offenders who receive these departures. Nagel and Schulhofer (1992), whose qualitative study focused on guideline circumvention in three U.S. district courts in 1989 and 1990, found that substantial assistance departures were used to mitigate the sentences of "salvageable" defendants and that the decisions of AUSAs to file motions for substantial assistance departures were based on their assessments of the value of the case and the sentence that was deserved. Their analysis also revealed that the standards used to determine the type of assistance that qualified as "substantial assistance" varied among the jurisdictions. One jurisdiction had a relatively strict standard that required the defendant to assist in making an arrest and be willing to testify, another had a more flexible standard in which the AUSA would file the motion even when the defendant did not provide information that led to additional prosecutions, and the third had a standard that was relaxed for more sympathetic defendants. Nagel and Schulhofer (1992) concluded that substantial assistance departures were "introducing sentencing disparity and compromising the uniformity and certainty goals of the guidelines" (p. 535).

There is considerable evidence to support Nagel and Schulhofer's (1992) conclusion that substantial assistance departures are a primary source of unwarranted sentencing disparity. A number of studies reveal that race, ethnicity, and gender affect both the likelihood of a substantial assistance departure and the magnitude of the sentence discount (Albonetti, 1997; 2002; Everett & Wojtkiewicz, 2002; Hartley et al., 2007; Johnson et al., 2008; Kempf-Leonard & Sample, 2001; LaFrenz & Spohn, 2006; Maxfield & Kramer, 1998; Mustard, 2001; Spohn & Fornango, 2009; Stacey & Spohn, 2006; Steffensmeier & Demuth, 2000). For example, Mustard (2001) found that Blacks, Hispanics, males, and those with lower levels of education and income were less likely to receive downward departures—and, when they did, received smaller sentence discounts—than Whites, females, and offenders with higher levels of education and income. Steffensmeier and Demuth (2000) similarly found that Hispanic drug offenders received smaller sentence discounts for providing substantial assistance than did either Black or White drug offenders. Albonetti's (2002) research revealed that White females received the greatest benefit from substantial assistance departures, and Stacey and Spohn (2006) found that female offenders with children were significantly more likely than female offenders without children to receive a downward departure for providing substantial assistance. As Steffensmeier and Demuth (2000) noted, these findings clearly raise concerns about "the equal application of the law and the wherewithal of the sentencing guidelines in reducing sentencing disparities of any kind" (p. 725).

There also is an emerging body of empirical research confirming that the use of substantial assistance departures varies across court contexts (Hartley et al., 2007; Johnson et al., 2008; Maxfield & Kramer, 1998; Spohn, 2005; Ulmer, 2005; U.S. Sentencing Commission, 2004) and across prosecutors (Spohn & Fornango, 2009). Hartley and his colleagues (2007) found that use of substantial assistance departures for offenders charged with crack and powder cocaine offenses varied significantly across federal circuits, and Maxfield and Kramer (1998) concluded that use of these departures varied across district courts (see also LaCasse & Payne, 1999; Spohn, 2005; and Ulmer, 2005, who found significant differences across district courts). More recently, Johnson et al. (2008) used a multilevel modeling strategy to investigate whether districts varied in their use of sentencing departures. They found significant district-level differences in the likelihood of substantial assistance departures and in the weight attached to the various predictors of these decisions; they also found

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that differences in district courts' use of substantial assistance departures could be attributed in part to the size of the district's caseload and the racial composition of the district's population. Spohn and Fornango (2009) used a similar modeling strategy to examine whether U.S. attorneys varied in their use of substantial assistance departures. They found that although the between-prosecutor differences in the likelihood of obtaining a departure largely reflected differences in the types of cases and the types of offenders handled by each prosecutor, small, but statistically significant, differences across prosecutors remained even after controlling for offender and case characteristics and for the district in which the case was adjudicated. These findings led them to conclude that the prosecutors in the district courts they examined "do not have *identical* views of the circumstances that justify a substantial assistance departure" (Spohn & Fornango, 2009, pp. 835-836; emphasis in the original).

The research conducted to date, then, reveals that legally irrelevant factors affect the likelihood of receiving substantial assistance departures and the magnitude of the sentence discount. Research also reveals that there is significant intercircuit, interdistrict, and interprosecutor variation in the use of substantial assistance departures, which Johnson et al.'s (2008) study suggests can be at least partially attributed to court contextual factors.

SENTENCE OUTCOMES

Research on sentencing outcomes in the postguidelines era focuses on the issue of unwarranted disparity in sentencing, with a particular focus on racial and ethnic disparities. This research generally reveals that unwarranted disparity has not been eliminated. For example, Spohn (2000) reviewed 40 studies examining the relationship between race, ethnicity, and sentencing. This included 32 studies of sentencing decisions at the state level and 8 studies at the federal level. Consistent with the conclusions of earlier reviews (Chiricos & Crawford, 1995), Spohn reported that many of these studies revealed a direct race effect. At both the state and federal levels, there was evidence that African Americans and Hispanics were more likely than Whites to be sentenced to prison; at the federal level, there was also evidence that African Americans received longer sentences than Whites. These findings are confirmed by several more recent studies of state and federal sentencing decisions (Everett & Wojtkiewicz, 2002; Johnson & Betsinger, 2009; Kempf-Leonard & Sample, 2001; Kramer & Steffensmeier, 1993; Mustard, 2001; Pasko, 2002; Spohn & Holleran, 2000; Steffensmeier & Demuth, 2000; Steffensmeier et al., 1998; Ulmer et al., 2010). For example, Steffensmeier and Demuth (2000), who compared sentence outcomes for Whites, Blacks, White Hispanics, and Black Hispanics, found that the likelihood of incarceration was substantially lower and the mean prison sentence significantly shorter for White offenders than for minorities, especially Hispanics.

There also is substantial evidence that the gender of the offender influences state and federal sentence outcomes. In fact, a report on the first 15 years of federal guidelines sentencing by the U.S. Sentencing Commission (2004) stated that "the gap in average prison terms between male and female offenders has widened in the guidelines era" (p. 127). Consistent with this, a number of studies found that female offenders were sentenced more leniently than male offenders (Albonetti, 1997, 2002; Everett & Wojtkiewicz, 2002; Johnson & Betsinger, 2009; Mustard, 2001; Steffensmeier et al., 1993; Ulmer et al., 2010). The results of these studies, all of which controlled for crime seriousness, the offender's

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criminal history, and other legally relevant factors, clearly suggest that judges evaluate female offenders differently than male offenders.

Only a handful of sentencing studies have examined the interaction of race or ethnicity and other extralegal variables; the research that does exist demonstrates that offender characteristics have both indirect and interactive effects on federal sentence outcomes. Albonetti's (1997) research on drug offenders, for example, revealed that the offender's gender affected sentencing decisions for White offenders and Black offenders but not for Hispanic offenders and that gender and race or ethnicity conditioned the effects of guideline departures, guilty pleas, offense seriousness, and criminal history (see also Brennan & Spohn, 2009; Spohn & Brennan, 2011). In a later study, Albonetti (2002) found that White females received the greatest benefit from substantial assistance departures and that the guideline offense level had a more pronounced effect on sentence length for White females than for Black females. LaFrentz and Spohn (2006), whose research revealed that race and ethnicity did not have a direct effect on sentence length, found that race and ethnicity interacted with gender and employment status. Black and Hispanic females got shorter sentences than their male counterparts, but White females were treated no differently than White males, and unemployed Whites received longer sentences than employed Whites, but there were no differences in the sentences imposed on unemployed and employed Blacks and Hispanics. Research in the state courts similarly suggests that young Black and Hispanic males pay a punishment penalty (Spohn & Holleran, 2000; Steffensmeier et al., 1998).

In summary, research on the sentencing process suggests that structured sentencing reforms have not been able to achieve the goal of eliminating unwarranted disparity in sentencing. Sentence outcomes in the postguidelines era are affected by the legally irrelevant offender characteristics, including race, ethnicity, and gender.

THE CURRENT STUDY

The purpose of this study is to determine whether the offender's history of hard drug use and hard drug use at the time of the crime affect case outcomes for offenders charged with and convicted of drug trafficking offenses in three federal district courts. We focus on three outcomes: whether the offender was in pretrial detention prior to adjudication, whether the offender received a downward departure for providing substantial assistance, and the length of the sentence imposed on offenders who were sentenced to prison. We do not test specific hypotheses about the relationships between drug use or drug use history and these outcomes. As noted earlier, decision makers' views about the nature and causes of drug abuse and addiction, the effectiveness of drug treatment, and the causal role of drug use in criminal (especially violent) behavior are likely to affect their perceptions of drug offenders' dangerousness, culpability, and potential for rehabilitation. Prosecutors and judges who see a direct connection between drug use and violent crime or who believe that drug addiction is a behavioral or moral choice, with drug use in the person's control, may believe that those who use drugs are more culpable, dangerous, and likely to recidivate and that they therefore deserve more punitive treatment. In contrast, prosecutors and judges who adopt the medical or disease model or who believe that drug addiction results from personality disorders or mental health issues may have more sympathetic views of offenders with a history of substance use and, as a result, may treat them more leniently when making decisions regarding pretrial detention, substantial assistance departures, and sentence length.

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METHOD

DATA

We used a subset of data collected for a study of charging and sentencing decisions in three U.S. district courts: the District of Minnesota, the District of Nebraska, and the Southern District of Iowa. The data file includes detailed information on all offenders sentenced in these courts during fiscal years 1998, 1999, and 2000.[2] For this study, we selected all cases for which the offender was convicted of a drug trafficking offense.[3] We eliminated cases (n = 25) with offenders who were Asian or Native American as well as cases with missing data on the independent variables. This resulted in a data file with 1,567 cases: 558 from the Southern District of Iowa, 450 from the District of Minnesota, and 579 from the District of Nebraska.

We use the data from these three district courts, rather than data from all U.S. district courts, for two reasons. First, the primary independent variables for this study—whether the offender had a history of hard drug use and whether the offender was using hard drugs at the time of the crime—are not included in the publicly available data files from the U.S. Sentencing Commission. Because we had access to the presentence reports in these three district courts, we were able to collect this information. Second, there is mounting evidence that sentence outcomes vary significantly among federal district courts (Hofer, Blackwell, & Ruback, 1999; Kautt, 2002; LaCasse & Payne, 1999; Spohn, 2005). This calls into question the conclusions of studies of federal sentencing decisions that use data aggregated across all district courts. As Weisselberg and Dunworth (1993) noted, "it is extremely difficult, and perhaps unhelpful, to draw general, system-wide conclusions about the effect of the guidelines upon the district courts" (p. 27). Because of these concerns, we use data from three relatively homogeneous U.S. district courts, and we control for the district in which the case was adjudicated.

DEPENDENT AND INDEPENDENT VARIABLES

Descriptive statistics for the dependent and independent variables are presented in Table 1. There are three dependent variables. The first is a dichotomous measure of whether the offender was detained (coded 1) or released (coded 0) prior to adjudication (by plea or by trial). The second is a dichotomous variable indicating whether the offender received a downward departure for providing substantial assistance (*yes* = 1; *no* = 0). The third dependent variable is the length of the prison sentence imposed on offenders who were sentenced to prison. (There were only 33 offenders convicted of drug trafficking offenses who were not sentenced to prison; therefore, we do not model the likelihood of a prison sentence.) Because the values were positively skewed, we logged the sentence length variable. In these three district courts, 63.9% of the offenders were in custody prior to adjudication, 38.3% of the offenders received substantial assistance departures, and the mean sentence was 90.45 months.

The primary independent variables are indicators of the offender's drug use or abuse, which is measured by three dummy variables: whether the offender had a history of hard drug use but was not using drugs at the time of the crime (*yes* = 1; *no* = 0); whether the offender was under the influence of hard drugs at the time of the crime (*yes* = 1; *no* = 0), and whether the offender had never used hard drugs (*yes* = 1; *no* = 0), which is the

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TABLE 1: Frequency Distribution: Dependent and Independent Variables

Variable	n	%	M
Dependent variables			
In custody prior to adjudication	1,001	63.9	
Substantial assistance departure	600	38.3	
Length of prison sentence (months)			90.45
Length of prison sentence (logged)			1.81
Illegal drug use/abuse			
History of hard drug use but not using during crime	347	22.1	
Using hard drugs at time of crime	806	51.4	
No history of hard drug use (reference)	414	26.4	
Offender characteristics			
Race/ethnicity			
White (reference)	652	41.6	
Black	405	25.8	
Hispanic	510	32.5	
Female	240	15.3	
Age at sentencing			31.86
Unemployed	676	43.1	
Noncitizen	381	24.3	
Education			
No high school degree (reference)	688	43.9	
High school degree	639	40.8	
Some college or college degree	240	15.3	
Married	386	24.6	
Number of dependent children			1.75
Criminal history points			4.28
Case characteristics			
Presumptive sentence (months)			116.42
Presumptive sentence (logged)			1.96
Most serious count is drug conspiracy	1,197	76.4	
Drug type			
Powder cocaine	216	13.8	
Crack cocaine	353	22.5	
Methamphetamine	843	53.8	
Other drugs (reference)	155	9.9	
Role adjustment			
No role adjustment (reference)	1,146	73.1	
Aggravated role adjustment	133	8.5	
Mitigated role adjustment	288	18.4	
In custody at time of sentencing	1,001	63.9	
Under criminal justice control at time of crime	546	34.8	
District court where case adjudicated			
Southern Iowa (reference)	558	34.4	
Nebraska	579	36.9	
Minnesota	450	28.7	

reference category. Offenders who were using drugs at the time of the crime by definition have a history of hard drug use, which was measured as evidence that the offender had "ever" used the specified drugs. Our variables concerning history of hard drug use therefore differentiate among offenders who had used hard drugs at some point in their lives but were

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not using drugs at the time of the crime, offenders who were using hard drugs at the time of the crime, and offenders who had never used hard drugs As indicated earlier, we define "hard drugs" as powder cocaine, crack cocaine, methamphetamine, and heroin and other opiates. Information on the offender's drug use was obtained during the presentence investigation (either from the offender or from family members and other individuals interviewed during the investigation) and documented in the presentence report. (We were unable to measure the frequency of hard drug use, as the presentence investigation report did not include this information.)

As shown in Table 1, substantial percentages of these drug trafficking offenders had a history of hard drug use but were not using drugs at the time of the crime (22.1%) or were under the influence of hard drugs at the time of the crime (51.4%); only 26.4% of the offenders had no current or past history of hard drug use. Further analysis revealed that many offenders had a history of using more than one type of drug and that some were under the influence of more than one drug at the time of the crime. The most common type of drug ever used was powder cocaine (61.1% of offenders reported using this drug), followed by methamphetamine (44.6%), crack cocaine (20.3%), and heroin (7.4%). Approximately one third (31.1%) of the offenders reported that they were under the influence of methamphetamine at the time of crime, and one fourth (24.5%) reported being under the influence of powder cocaine. In contrast, very few offenders reported being under the influence of either crack cocaine (7.7%) or heroin (1.6%) at the time of the crime.

All analyses also control for the offender's race or ethnicity and gender and for other offender and case characteristics shown by previous research to influence federal sentencing or pretrial release decisions. Race and ethnicity are measured with three dummy variables (Black, Hispanic, and White); White offenders are the reference category. The offender's gender is measured with a dichotomous variable (*female* = 1; *male* = 0). We also include dummy variables for the offender's employment status (*employed* = 1; *unemployed* = 0), citizenship status (*U.S. citizen* = 1; *noncitizen* = 0), and marital status (*married* = 1; *not married* = 0). We also control for the offender's number of dependent children and for the number of criminal history points assigned to the offender, which ranges from 0 to 44. Three dummy variables are included to measure the offender's educational achievement (no high school degree, high school degree, some college or college degree), with those holding less than a high school degree as the reference category. The offender's age is a ratio-level variable that measures the offender's age in years.

We control for several case characteristics, which differ somewhat depending on the dependent variable being analyzed. All analyses include the presumptive sentence, which, like the actual sentence, is positively skewed and is therefore logged. Other case characteristics included in all of the models are dichotomous indicators of whether the most serious charge against the offender was a drug conspiracy charge (*yes* = 1; *no* = 0) and whether the offender was under some type of criminal justice control (out on bail, on probation, on parole) at the time of the crime (*yes* = 1; *no* = 0). We also control for the type of drug involved in the offense, measured by four dummy variables (powder cocaine, crack cocaine, and methamphetamine, with other drugs as the reference category), whether the offender received an adjustment to the presumptive sentence for playing an aggravated role or mitigated role in the offense (no role adjustment is the reference category), and the jurisdiction in which the case was adjudicated (Minnesota and Nebraska, with southern Iowa as the reference category). Our analysis of sentence length also controls for whether the offender

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received a downward departure for providing substantial assistance (*yes* = 1; *no* = 0) or a regular downward departure (*yes* = 1; *no* = 0). Our analyses of the likelihood of a substantial assistance departure and sentence length include whether the offender was in custody prior to adjudication (*in custody* = 1; *released* = 0).

Although prior research on federal sentence outcomes controlled for the offense seriousness score and the offender's criminal history score, the present study controls for the presumptive sentence, which is the approach recommended by Engen and Gainey (2000) and the U.S. Sentencing Commission (2004). The presumptive sentence, based on the offense seriousness score and the criminal history score, is the minimum sentence that that judge could impose without departing from the guidelines. To account for mandatory minimum sentences that were prevalent in drug trafficking cases, we measure the presumptive sentence as the guideline minimum unless a mandatory minimum sentence was triggered and indicated a longer sentence than the guideline minimum. In such cases, the presumptive sentence is measured as the mandatory minimum sentence. If there was a mandatory minimum sentence but the safety valve was applied, the presumptive sentence is the guideline minimum.

The data displayed in Table 1 reveal that three quarters of the offenders adjudicated in these three U.S. district courts were either White (41.6%) or Hispanic (32.5%); 25.8% were Black. Most offenders (84.7%) were male and their average age was approximately 32 years old. The typical offender had at least one dependent child, was employed at the time of the offense, was a U.S citizen, had not attended college, and was not married. The mean number of criminal history points assigned to these offenders was 4.28, indicating that most of these offenders had relatively minimal criminal histories (the maximum number of points is 44).

The mean presumptive sentence was 116.42 months, and three quarters (76.4%) of the offenders were facing drug conspiracy charges. More than half (53.8%) of the offenders adjudicated in these three district courts were convicted of an offense involving methamphetamine; most of the remaining offenders were convicted of an offense involving either crack (22.5%) or powder (13.8%) cocaine. Almost two thirds (63.9%) of the offenders were in custody prior to adjudication, and approximately one third (34.8%) were under criminal justice control at the time of the crime. Most offenders did not receive either an aggravated (8.5%) or a mitigated (18.4%) role adjustment.

We use binary logistic regression to analyze the likelihood of pretrial detention and the likelihood of a substantial assistance departure, which are dichotomous variables, and ordinary least squares regression to analyze the length of the sentence (logged).

RESULTS

The results of our analysis of the likelihood of pretrial detention, which are presented in Table 2, provide mixed support for our hypothesis that the offender's history of drug use and drug use at the time of the crime would have positive effects on the odds of detention. Consistent with our hypothesis, offenders who were using hard drugs at the time of the crime were nearly two times (Exp[b] = 1.98) more likely to be in custody prior to adjudication than offenders who had no history of hard drug use. On the other hand, the odds of pretrial detention for offenders with a history of hard drug use but who were not using drugs at the time of the crime did not differ from those for offenders who had never used hard drugs.

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TABLE 2: The Likelihood of Pretrial Detention: Results of the Logistic Regression Analysis

Variable	*B*	SE	*Exp(B)*
Illegal drug use/abuse			
Ever used hard drugs	0.30	.20	1.35
Using hard drugs at time of crime	0.38*	.17	1.47
Offender characteristics			
Race/ethnicity			
White (reference)			
Black	0.86*	.27	2.36
Hispanic	0.52*	.22	1.68
Female	–0.82*	.18	0.44
Age at sentencing	–0.01	.01	0.99
Unemployed	0.86*	.14	2.37
Noncitizen	3.22*	.31	25.11
Education			
No high school degree (reference)			
High school degree	–0.06	.15	0.94
Some college or college degree	–0.64*	.20	0.53
Married	–0.64*	.16	0.53
Number of dependent children	0.06	.04	1.06
Case characteristics			
Presumptive sentence (logged)	2.10*	.30	8.19
Most serious count is drug conspiracy	–0.16	.16	0.85
Drug type			
Powder cocaine	–0.29	.29	0.75
Crack cocaine	–0.63	.34	0.53
Methamphetamine	–0.52*	.25	0.60
Other drugs (reference)			
Role adjustment			
No role adjustment (reference)			
Aggravated role adjustment	0.83*	.32	2.28
Mitigated role adjustment	0.26	.18	1.30
Under criminal justice control at time of crime	0.64*	.15	1.90
District court where case adjudicated			
Southern Iowa (reference)			
Nebraska	–0.65*	.18	0.52
Minnesota	–0.48*	.16	0.62
Nagelkerke R^2		.456	

*$p \leq .05$.

Not surprisingly, the odds of pretrial detention were affected by the seriousness of the offense and the offender's criminal history (as measured by the presumptive sentence) and by other legally relevant factors. Offenders who played a major role in the drug trafficking offense (and thus received an aggravated role adjustment to the offense severity score) were more likely to be detained, as were those who were under some type of criminal justice control at the time of the crime. A somewhat counterintuitive finding is that drug offenders whose crimes involved methamphetamine were less likely to be detained than those whose crimes involved marijuana, heroin, or other drugs. In addition, the odds of pretrial detention were affected by the jurisdiction in which the case adjudicated; offenders in Nebraska and Minnesota were less likely than those in southern Iowa to be in custody prior to adjudication.

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The likelihood of pretrial detention also was affected by several offender characteristics in addition to the offender's use of drugs at the time of the crime, including the offender's race, ethnicity, gender, employment status, citizenship status, marital status, and education. The odds of pretrial detention were higher for Black and Hispanic offenders than for White offenders, for unemployed offenders than for those who were employed, and for noncitizens than for citizens; in contrast, the likelihood of detention was lower for females than for males, for married offenders than for those who were unmarried, and for offenders with some college or a college degree than for those without a high school degree.

Although some of these are factors that judges are required to take into consideration when deciding whether the offender should be released or not (i.e., the offender's employment status, marital status, education, and citizenship status), others—especially the offender's race or ethnicity and gender—should not influence the likelihood of pretrial detention after offense seriousness and other legally relevant factors are taken into consideration. The fact that these legally irrelevant factors did have a direct effect on pretrial detention suggests that, consistent with the focal-concerns perspective, they are linked to judges' attributions of dangerousness, threat, and likelihood of nonappearance at court proceedings.

Our second hypothesis predicted that the offender's history of drug use and drug use at the time of the crime would affect the likelihood of a substantial assistance departure, but we did not predict the direction of the relationship. As shown in Table 3, the odds of a substantial assistance departure were affected by both drug-use variables. Compared to offenders who reported that they had never used hard drugs, those with a history of drug use and those who were using drugs during the commission of the crime were *more likely* to receive a downward departure for providing substantial assistance.

Consistent with the results for pretrial detention, the likelihood of a substantial assistance departure was affected by a mix of offender and case characteristics. Although the offender's race and ethnicity did not have significant effects, the odds of receiving a departure were higher for female offenders than for male offenders and for offenders with some college or a college degree than for offenders without a high school degree; the odds were lower for noncitizens than for citizens. Whereas offenders facing longer presumptive sentences and those charged with a drug trafficking conspiracy were more likely to receive a departure, offenders who played a major role in the offense had lower odds, as did offenders who were in custody during the pretrial process. Finally, offenders adjudicated in Nebraska and Minnesota were less likely than those adjudicated in southern Iowa to receive a substantial assistance departure.

Our hypothesis that neither of the drug-use variables would affect the length of the sentence imposed on offenders convicted of drug trafficking was confirmed. As shown in Table 4, neither the offender's history of drug use nor his or her use of drugs at the time of the crime influenced the prison sentence imposed by the judge. In fact, the only offender characteristic that directly affected sentence length was gender: Female offenders received significantly shorter sentences than did male offenders. Not surprisingly, the presumptive sentence was the strongest predictor ($\beta = .71$) of the actual sentence, followed by whether the offender received a substantial assistance ($\beta = -.40$) or regular ($\beta = -.10$) downward departure. Other significant predictors of the length of the sentence were the offender's pretrial status (those in custody received longer sentences) and the type of drug involved in the offense (judges imposed longer sentences on offenders convicted of offenses involving

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TABLE 3: The Likelihood of a Substantial Assistance Departure: Results of the Logistic Regression Analysis

Variable	*B*	SE	*Exp(B)*
Illegal drug use/abuse			
Ever used hard drugs	.39*	.17	1.47
Using hard drugs at time of crime	.03	.14	1.03
Offender characteristics			
Race/ethnicity			
White (reference)			
Black	–.23	.24	0.80
Hispanic	–.24	.20	0.78
Female	.47*	.16	1.60
Age at sentencing	–.02	.007	0.98
Unemployed	–.08	.12	0.92
Noncitizen	–.70*	.22	0.50
Education			
No high school degree (reference)			
High school degree	.14	.13	1.15
Some college or college degree	.36*	.17	1.44
Married	.18	.14	1.20
Number of dependent children	.06	.04	1.06
Criminal history points	–.001	.01	0.99
Case characteristics			
Presumptive sentence (logged)	.79*	.25	2.19
Most serious count is drug conspiracy	.37*	.14	1.44
Drug type			
Powder cocaine	–.21	.24	0.81
Crack cocaine	–.19	.30	0.82
Methamphetamine	.08	.20	1.08
Other drugs (reference)			
Role adjustment			
No role adjustment (reference)			
Aggravated role adjustment	–.44*	.22	0.64
Mitigated role adjustment	.11	.15	1.12
In custody prior to adjudication	–.34*	.14	0.71
Under criminal justice control at time of crime	–.006	.13	0.99
District court where case adjudicated			
Southern Iowa (reference)			
Nebraska	–.26*	.13	0.77
Minnesota	–.32*	.15	0.73
Nagelkerke R^2		.137	

*$p \leq .05$.

powder cocaine and methamphetamine than on offenders convicted of offenses involving marijuana and other drugs).

Summarizing the results, the offender's use of hard drugs during the commission of the crime had a positive effect on the likelihood of pretrial detention, and the history of hard drug use and use of hard drugs at the time of the crime had positive effects on the odds of receiving a downward departure for providing substantial assistance. We also found that both pretrial detention and receipt of a substantial assistance departure were significant predictors of the length of the prison sentence. This suggests that the two drug-use variables,

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TABLE 4: Results of the Ordinary Least Squares Regression Analysis of Sentence Length in Months (Logged)

Variable	*B*	SE	*Beta*
Illegal drug use/abuse			
Ever used hard drugs	.018	.01	.02
Using hard drugs at time of crime	.00	.01	.00
Offender characteristics			
Race/ethnicity			
White (reference)			
Black	.04	.02	.04
Hispanic	.03	.02	.03
Female	–.04*	.01	–.04
Age at sentencing	.00	.001	.005
Unemployed	.01	.01	.02
Noncitizen	.00	.01	.02
Education			
No high school degree (reference)			
High school degree	–.008	.01	–.01
Some college or college degree	–.009	.02	.008
Married	.009	.01	.01
Number of dependent children	.001	.003	.004
Criminal history points	.002	.001	.03
Case characteristics			
Presumptive sentence (logged)	.91*	.02	.71
Substantial assistance departure	–.32*	.01	–.40
Downward departure	–.14*	.02	–.10
Most serious count is drug conspiracy	–.003	.01	–.003
Drug type			
Powder cocaine	.06*	.02	.05
Crack cocaine	.04	.02	.04
Methamphetamine	.05*	.02	.06
Other drugs (reference)			
Role adjustment			
No role adjustment (reference)			
Aggravated role adjustment	.03	.02	.02
Mitigated role adjustment	–.02	.01	–.02
In custody prior to adjudication	.06*	.01	.08
Under criminal justice control at time of crime	.01	.01	.02
District court where case adjudicated			
Southern Iowa (reference)			
Nebraska	–.08*	.01	–.10
Minnesota	–.09*	.01	–.11
R^2		.77	

*$p \leq .05$.

which did not have direct effects on sentence length, affected sentence length indirectly through their effects on pretrial detention and substantial assistance departure. These indirect effects, shown in Figure 1, reveal that the offender's use of drugs at the time of the crime led to a greater likelihood that the offender would be in custody prior to adjudication, which led in turn to a longer prison sentence. That is, offenders who were using drugs at

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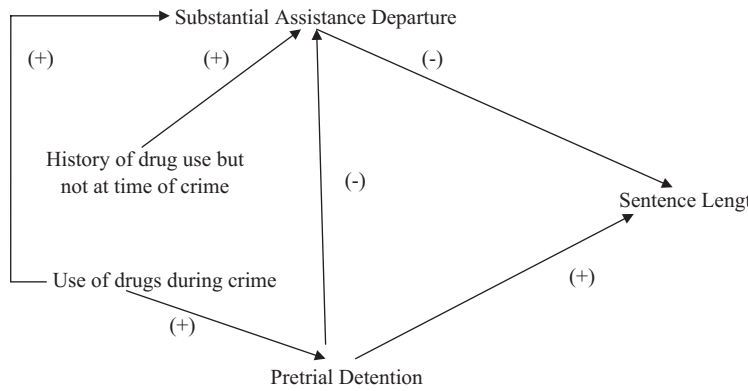

Figure 1: The Indirect Effects of Drug Use on Sentence Length

the time of the crime received harsher sentences than those who had never used hard drugs as a result of their higher odds of being detained during the pretrial period.

In contrast, both the offender's history of hard drug use and his or her use of drugs at the time of the crime led to a higher likelihood that the offender would receive a substantial assistance departure, which led in turn to a substantially shorter sentence. Thus, offenders with a history of hard drug use—regardless of whether they were using drugs at the time of the crime—received shorter sentences than offenders without a history of drug use because of the fact that they were more likely than offenders with no drug-use history to receive downward departures for providing substantial assistance. There also is a more complex path from history of drug use—again regardless of whether the offender was using drugs at the time of the crime—to a higher likelihood of pretrial detention to a lower likelihood of a substantial assistance departure and to a harsher sentence. We explore the implications of these findings in the next section.

DISCUSSION

Our study revealed that use of illegal drugs had multifaceted effects on outcomes for drug-trafficking offenders sentenced according to the federal sentencing guidelines. Whereas offenders with a history of illegal drug use and offenders using drugs at the time of the crime had a higher likelihood of receiving a substantial assistance departure, offenders using drugs at the time of the crime had a lower likelihood of pretrial release. Neither drug-use variable had a direct effect on the length of the sentence imposed by the judge. These inconsistencies are not necessarily at odds with the rules and regulations that govern these decisions. That neither drug-use variable had a direct effect on sentence length means that judges are following the guidelines, in that the history of substance abuse is not "ordinarily relevant" to the determination of the appropriate sentence. Similarly, judges are supposed to take the offender's illegal drug use into account in making bail and pretrial release decisions, and the discretion inherent in prosecutors' decisions regarding substantial assistance departures opens the door for consideration of issues such as substance abuse. These decisions are likely to be affected by whether decision makers view drug abuse as a disease, psychological disorder, or moral or behavior issue.

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The fact that substance abuse had a negative effect on pretrial release but a positive effect on a substantial assistance departure is also logical, given the objectives of judges and prosecutors when making these decisions. Although we can only speculate, our findings suggest that judges view offenders who were using drugs at the time of the crime as likely to continue to participate in drug trafficking to support their use and as unlikely to show up for all court appearances; as a result, judges view these offenders as high risks for recidivism and poor risks for pretrial release. In contrast, prosecutors appear to regard drug-abusing offenders (whether measured by a history of illegal drug use or by use of drugs at the time of the crime) as more sympathetic and less culpable and, thus, as better candidates for substantial assistance departures. It may be that prosecutors believe that the severe penalties for drug trafficking are inappropriately harsh for drug-abusing offenders who may be engaging in drug distribution simply as a means of securing drugs for their personal use. This belief would be more likely if prosecutors view drug abuse as a brain disease rather than being in the control of the individual.

Our findings highlight the importance of examining outcomes other than the sentence length as well as the need to test for indirect as well as direct effects. Had we simply examined the effects of drug use on sentence length, we would have concluded that the offender's current and past use of illegal drugs did not affect punishment. This conclusion would have been misleading, given our findings regarding the effects of drug use on pretrial detention and substantial assistance departures and the subsequent effects of pretrial detention and receipt of a departure on sentence length. Both drug-use variables affected sentence length indirectly through their effects of the likelihood of pretrial detention and substantial assistance departure.

The findings also point to the importance of the jurisdiction in which the case was adjudicated. Although we examined case outcomes in three relatively homogenous district courts, we found that all three case outcomes varied significantly by jurisdiction. Compared to offenders adjudicated in the Southern District of Iowa, offenders whose cases were processed in the District of Minnesota and the District of Nebraska were less likely to be detained prior to trial and less likely to receive substantial assistance departures; they also received significantly shorter sentences. These jurisdictional differences are not surprising. Interviews with criminal justice officials in each of these jurisdictions revealed that the U.S. attorney for the Southern District of Iowa at the time these data were collected exercised less oversight over and had a looser policy regarding the use of substantial assistance departures and that judges in this jurisdiction had more liberal attitudes toward using departures to reduce sentences. The interviews also revealed that officials in southern Iowa were more supportive of the federal sentencing guidelines generally. This lends credence to researchers' contention that aggregating data across all district courts may distort the reality of decision making in each district court (Kautt, 2002; LaCasse & Payne, 1999; Spohn, 2005).

LIMITATIONS

There are several limitations to our study that should be noted. Our data were from three federal court districts in the midwestern United States, and thus the findings may not be generalizable to other districts. In particular, the prevalence of methamphetamine use is higher than in most other federal court districts. In addition, the data comprise court cases that were sentenced between 1998 and 2000; thus recent changes in U.S. sentencing guidelines, such as the *Booker* decision, and the reduction in the crack cocaine sentencing disparity may have

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had effects on the relationship between drug use and pretrial or sentencing decisions for drug traffickers.

Our measures of drug use are based on presentence investigation reports and thus are not clinical diagnoses of drug abuse or dependence. However, because the drug-use data are from these reports, they do accurately reflect the information that would have been available to the judges and prosecutors at the time their decisions were made. On the other hand, it is possible that other information not contained in the data set (such as information about the offender presented by his or her defense attorney, witness testimony about the offender's character) may have been available to prosecutors and judges and incorporated into decision making.

CONCLUSIONS AND IMPLICATIONS

Our findings advance sentencing research by suggesting that an offenders' nonmarijuana drug use does affect sentencing decisions but only indirectly by affecting pretrial detention and substantial assistance departure decisions. Accordingly, a more nuanced consideration is needed of the impacts of drug use on crime and sentencing decisions, including granting of substantial assistance departures. Given that prosecutors and judges appear to be considering current drug use as an aggravating factor (increasing the likelihood of pretrial detention), it may be important to provide decision makers with better clinical assessments of current and past drug abuse status to inform detention decisions, to assess public safety risk and rehabilitative potential, and to also develop and expand treatment-based alternatives to pretrial detention.

Additional research is needed to disentangle the causal connections between drug abuse and drug trafficking for federal offenders. Our data suggest a seeming contradiction among prosecutors and judges as to whether drug traffickers who also use hard drugs should be viewed as less blameworthy or as an increased public safety risk. Research on judicial and prosecutorial attitudes toward addiction and drug-involved offenders and their views about the causes of drug abuse would help elucidate the ways in which drug-use information is used in case decisions and identify areas in which more training and education for judges and prosecutors are needed about the causes of drug abuse.

Illegal drug use is quite common among offenders in federal court, and a majority of those convicted of drug trafficking have histories of illegal drug use. However, a majority of convicted drug traffickers in federal court play relatively minor roles in the drug distribution process. With the goal of developing more informed sentencing decisions for drug offenders that protect public safety, achieve just and fair sentencing goals, and maximize the use of rehabilitative interventions to reduce drug-related crime, it is important to continue to examine the role that drug use plays in pretrial detention and sentencing decisions in the federal courts.

NOTES

1. In 2005, the U.S. Supreme Court ruled that the federal guidelines are advisory rather than mandatory. Although judges must still compute and take into account the recommended guideline range for each offender, they are not bound to impose a sentence within that range (*United States v. Booker* and *United States v. Fanfan*, 543 U.S. 220 [2005]). The data for this study, however, are from the pre-*Booker* era.

2. We obtained the U.S. Sentencing Commission's offender data file for each district for each year. This data file contained detailed information on the offender, the case, and the sentence; it also included a unique identifier that was used to

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match the case to case files maintained by federal courts in the District of Minnesota, District of Nebraska, and the Southern District of Iowa. We supplemented the offender data file with information contained in the presentence report and the order of judgment. From the case files, trained data collectors collected detailed data on the charges that were filed, the disposition of each charge, the terms of the plea agreement, and whether an amended judgment was filed. From the presentence reports, we collected data on offender characteristics that are not included in the U.S. Sentencing Commission data files: the offender's current marital status, the number of children the offender had and whether he or she provided financial support to these children, the offender's substance abuse history, and whether the offender was under any type of criminal justice control at the time of his or her arrest.

3. Limiting the analysis to offenders convicted of drug-trafficking offenses has the potential to introduce selection bias if those who are charged with drug-trafficking offenses are convicted of a less serious crime. Because we had access to the court files for these cases, we were able to collect data on the charges for which offenders were indicted. Of the offenders for whom the most serious charge was either a drug-trafficking conspiracy or a drug-trafficking charge, 96% were convicted of one of these crimes. There were only 74 offenders who were originally charged with drug trafficking who were not convicted of drug trafficking.

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